

Calendar Lines 2-3

Case Name: *Francisco Carrascal et al. v. CSAA Insurance Exchange et al.*

Case No.: 20CV367997

I. BACKGROUND

Self-represented plaintiffs Francisco Carrascal and Thaweesap Uttho (“Plaintiffs”) filed this action against Guillermo Chavarria and Chavarria’s insurance company, Allstate Northbrook Company (“Allstate”), following a collision between their car and Chavarria’s car in 2019. Plaintiffs filed their initial complaint on July 9, 2020, a first amended complaint on September 14, 2020, and a second amended complaint on April 7, 2021. Plaintiffs and Chavarria filed a notice of unconditional settlement between them on March 17, 2023. More than a year after this settlement, Plaintiffs filed a third amended complaint (“TAC”) on July 29, 2024 naming their own insurance company, CSAA Insurance Exchange (“CSAA”), as a new defendant.¹

The TAC stated three causes of action: (1) negligence; (2) negligent infliction of emotional distress (“NIED”); and (3) breach of contract. CSAA, the only remaining defendant, brought a demurrer to the TAC, which the court sustained on December 12, 2024. The court determined that all three causes of action failed to state sufficient facts under Code of Civil Procedure section 430.10, subdivision (e).² While the court expressed doubts that any of the causes of action could be successfully amended, it granted Plaintiffs 20 days’ leave to amend. The order stated that it was only granting leave to amend the causes of action as to which the demurrer had been sustained; it did not grant leave to add new causes of action. (See December 12, 2024 Order, p. 12:1-8.)

Plaintiffs did not file any amended pleading within 20 days of the December 12, 2024 order. Instead, Plaintiffs filed a document entitled “Amendment to Pleading to Object to Demurrer” on December 23, 2024, with a noticed hearing date of May 15, 2025. This was followed by a document entitled “Strong Lawful[] Opposition to Demurrer [and] Amendment to Pleading Objecting [to] ‘Demurrer Grant’ Based in Fraud” on December 27, 2024. This latter document did not bear a hearing date. On January 23, 2025, CSAA filed an ex parte application to dismiss the action with prejudice, based on Plaintiffs’ failure to file an amended pleading in accordance with the December 12, 2024 order. Because of the documents filed by Plaintiffs, the court set CSAA’s application for a hearing on May 15, 2025, the same date noticed by Plaintiffs’ “Amendment to Pleading to Object to Demurrer.”

On April 17, 2025, Chavarria filed a motion for summary judgment, objecting to his continued inclusion in the TAC as a defendant, even after his unconditional settlement with Plaintiffs. That motion was set for hearing on July 29, 2025. The court has not received any timely opposition to this motion. (See Code Civ. Proc., § 437c, subd. (b)(2).)

¹ Previous versions of the complaint erroneously referred to “AAA Insurance” as a named defendant, a party that was never served. On August 1, 2024, CSAA was finally deemed served with the summons and complaint—via a notice of acknowledgement and receipt—more than four years into this case.

² The court takes judicial notice of the December 12, 2024 order on its own motion pursuant to Evidence Code section 452, subdivision (d).

At the May 15, 2025 hearing, the court determined that the documents filed by Plaintiffs in December 2024 did not constitute an amended pleading and that the first (December 23, 2024) document could only be reasonably construed as an inadequately supported motion for leave to amend—to add an additional cause of action for negligent misrepresentation against CSAA, as well as an additional cause of action for “fraud and negligent misrepresentation” against former defendant Allstate, who had been dismissed from the case on May 6, 2021. (See May 15, 2025 Order, p. 2:16-23.)³ The court also interpreted the document filed on December 27, 2024 as an exceedingly belated objection to the court’s December 11, 2024 tentative ruling. (*Id.* at p. 4:10-23.) The court denied the motion for leave to amend. (*Id.* at p. 5:1-9.)

The court also denied CSAA’s request for dismissal, as it construed Plaintiffs’ filings (giving Plaintiffs the benefit of the doubt) as an unsuccessful attempt to comply with the court’s December 12, 2024 order. The court concluded by stating:

In view of the foregoing, the court will grant Plaintiffs one last opportunity to avoid a dismissal as to CSAA by filing a fourth amended complaint that *strictly* complies with the court’s December 12, 2024 order That means Plaintiffs may amend their pleading in an effort to remedy the defects in the *negligence, negligent infliction of emotional distress, and breach of contract* causes of action against CSAA, but they may not add new causes of action or new parties to the case. They must do so within 10 days of this order—*i.e.*, by no later than **May 27, 2025** (given the weekend and Memorial Day holiday). If they fail to do so, CSAA may refile its *ex parte* application under section 581.

(May 15, 2025 Order, pp. 5:21-6:5 [emphasis in original].)

Plaintiffs appear to have attempted to comply with the May 15, 2025 order by submitting a fourth amended complaint (“4AC”) (though signed only by plaintiff Carrascal) on May 23, 2025. The clerk’s office rejected this filing, based apparently on a misreading the court’s order (and perhaps compounded by the confusing procedural history of this case). Because the court’s May 15, 2025 order granted Plaintiffs a “last opportunity” to file an amended pleading that “strictly complies” with the December 12, 2024 order, the court now orders the clerk’s office to accept the 4AC for filing, and this pleading must be deemed filed as of May 23, 2025. The 4AC states the same three causes of action as the TAC: (1) negligence; (2) negligent infliction of emotional distress; and (3) breach of contract.

On May 30, 2025, CSAA filed a demurrer to the 4AC. This demurrer was set for hearing on July 29, 2025, the same date as Chavarria’s motion for summary judgment. Plaintiffs have not filed any opposition to this demurrer, either.

II. DISCUSSION

As noted above, Plaintiffs are self-represented. Self-represented litigants are entitled to the same, but no greater, consideration than other litigants and attorneys. (*County of Orange v.*

³ The court also takes judicial notice of the May 15, 2025 order on its own motion under Evidence Code section 452, subdivision (d).

Smith (2005) 132 Cal.App.4th 1434, 1444.) Self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [“A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.”].)

A. Chavarria's Motion for Summary Judgment

Because the court has ordered the 4AC accepted for filing, the motion for summary judgment must be denied, as it is directed to the former pleading. An amended complaint supersedes all prior complaints, and because there is but one complaint in a civil action, “the filing of an amended complaint moots a motion directed to a prior complaint.” (*State Comp. Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1130-1131 [error to grant summary adjudication based on previous complaint].)

The court DENIES Chavarria’s motion for summary judgment as moot. This ruling is without prejudice to Chavarria’s ability to file a similar motion directed at the 4AC.

B. CSAA’s Demurrer

CSAA demurs to all three causes of action in the 4AC on grounds of uncertainty and failure to state sufficient facts. (See Notice of Demurrer and Demurrer, p. 2:1-21.)

1. Uncertainty

As with the TAC, CSAA demurs again to all three causes of action in the 4AC on the ground of uncertainty, even though the court previously overruled this basis for demurrer in the December 12, 2024 order. This is improper, and it is again unsupported by any argument in CSAA’s memorandum of points and authorities. As the court previously pointed out, “‘demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that defendant cannot reasonably respond.’ ‘A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.’” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 [internal citations omitted].)

The court again OVERRULES CSAA’s demurrer to all three causes of action on the ground of uncertainty. (Code Civ. Proc., § 430.10, subd. (f).)

2. First Cause of Action: Negligence

“The elements of a negligence cause of action are duty, breach, causation and damages. [Citation.]” (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.) “The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion. [Citation.]” (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 397.)

The court SUSTAINS CSAA’s demurrer to the first cause of action based on a failure to state sufficient facts.

This cause of action is still based primarily on Chavarria’s alleged negligence in colliding with Plaintiffs. CSAA, by contrast, is Plaintiffs’ *own* insurer. As the court noted in the December 12, 2024 order, this is a role that almost never gives rise to a negligence cause of action. (See *Adelman v. Associated International Ins. Co.* (2001) 90 Cal.App.4th 352, 369 [“If an insured seeks to recover in tort for an insurer’s mishandling of a claim, it must allege more than mere negligence.”]; *Sanchez v. Lindsey Morden Claims Services, Inc.* (1999) 72 Cal.App.4th 249, 254 [“negligence is not among the theories of recovery generally available against insurers . . .”].)

CSAA persuasively argues that the 4AC does not cure the defects in this cause of action that were identified in the December 12, 2024 order. The allegations that CSAA breached a duty to “protect their client Plaintiffs” or to “investigate the accident property” and that it “blamed their own clients” are insufficient to support a negligence cause of action against CSAA. (See 4AC, pp. 3:25-4:13.)⁴ As the court previously noted, a negligence cause of action cannot be based on CSAA’s alleged failure to perform on a *contract* between the parties. The allegation that CSAA somehow “allowed” Chavarria and Allstate to be dismissed from this case also does not support a negligence cause of action. (See *id.* at p. 4:24-27.) Plaintiffs have represented themselves since the beginning of this lawsuit, and the progress of the lawsuit has been their responsibility. Events that occurred during this litigation cannot reasonably be framed as breaches of a duty of care owed to Plaintiffs by their insurer.

A plaintiff bears the burden of demonstrating that an amendment would cure the defect identified on demurrer. (See *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 (*Schifando*); *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 (*Shaeffer*) [“The onus is on the plaintiff to articulate the ‘specifi[c] ways’ to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend ‘only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case. [Citation.]’”].) Plaintiffs have not met that burden here, as they have not even filed an opposition to the demurrer. Moreover, they have been given multiple opportunities to cure their pleading defects in this case. As no potentially effective amendment is apparent to the court, the court denies any further leave to amend the first cause of action as to CSAA.

3. Second Cause of Action: NIED

As quoted by the court in its previous demurrer order, “[t]he law of negligent infliction of emotional distress in California is typically analyzed by reference to two ‘theories’ of recovery: the ‘bystander’ theory and the ‘direct victim’ theory. We have repeatedly recognized that the negligent causing of emotional distress is not an independent tort, but a tort of negligence. The traditional elements of duty, breach of duty, causation, and damages apply. Whether a defendant owes a duty of care is a question of law. Its existence depends upon the foreseeability of the risk and a weighing of policy considerations for and against imposition of liability.” (*Fluharty v. Fluharty* (1997) 59 Cal.App.4th 484, 490, internal citations and quotation marks omitted.)

The second cause of action can only be considered a “direct victim” assertion of NIED. A “direct victim” theory is one in which the plaintiff’s claim of emotional distress is based on

⁴ The 4AC’s page numbers are often obscured by handwritten allegations, and its paragraphs are not consecutively numbered, making precise citation difficult.

the violation of a duty that the defendant owes directly to the plaintiff. (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 205.) The California Supreme Court has allowed plaintiffs to recover damages as “direct victims” in only three types of factual situations: (1) the negligent mishandling of corpses (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 879); (2) the negligent misdiagnosis of a disease that could potentially harm another (*Molien v. Kaiser Foundation Hospitals* (1980) 27 Cal.3d 916, 923); and (3) the negligent breach of a duty arising out of a preexisting relationship (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1076). Only the third situation could potentially apply here.

The court SUSTAINS CSAA’s demurrer to the second cause of action on the ground that it fails to state sufficient facts.

As with the first cause of action, this cause of action is also based primarily on the collision allegedly caused by Chavarria. The allegation that CSAA is liable for NIED because “they have not done their job as an insurance carrier for Plaintiffs” and “did nothing to protect their clients/Plaintiffs” does not state sufficient facts to support a direct victim theory of NIED. (See 4AC, p. 6:15-24.) Also, because the first cause of action fails to state sufficient facts, Plaintiffs have not adequately alleged the breach of any duty arising out of a preexisting relationship. This is because “‘there is no duty to avoid negligently causing emotional distress to another’ Thus, ‘unless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant’s breach of some other legal duty and the emotional distress is proximately caused by that breach of duty.’” (*Gu v. BMW of North America, LLC* (2005) 132 Cal.App.4th 195, 204 [internal citations omitted].)

As the demurrer is unopposed and no effective amendment is apparent to the court, the court denies further leave to amend the second cause of action as alleged against CSAA. (See *Schifando and Shaeffer, supra*; see also *Medina v. Safe-Guard Products* (2008) 164 Cal.App.4th 105, 112 fn. 8 [“As the Rutter practice guide states: ‘It is not up to the judge to figure out how the complaint can be amended to state a cause of action. Rather, the burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.’”].)

4. Third Cause of Action: Breach of Contract

As noted in the prior demurrer order, in order to state cause of action for breach of contract, a plaintiff must allege: “(1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach. [Citation.]” (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.)

The court SUSTAINS CSAA’s demurrer to the third cause of action on the ground that it fails to state sufficient facts.

CSAA is correct that the 4AC does not cure the defects identified in the December 12, 2024 order in the third cause of action. The allegations that CSAA “did nothing to uphold their end of the contract to protect their clients/Plaintiffs,” and “fraudulently accused” Francisco

Carrascal of being at fault in the accident are insufficient to allege a breach of contract. (See 4AC, pp. 7:26-8:2.)⁵ The third cause of action in the 4AC continues to fail to identify the terms of any contract between CSAA and Plaintiffs, including specifically the terms that were allegedly breached. It also fails to allege facts establishing that a valid contract between the Plaintiffs and CSAA existed at the time of the accident or that Plaintiffs performed their obligations under the contract (or had an excuse for non-performance).

As the demurrer is unopposed and no effective amendment is apparent to the court, further leave to amend the third cause of action as alleged against CSAA is DENIED. (See *Schifando* and *Shaeffer*, *supra*.)

III. CONCLUSION

Plaintiffs' 4AC is accepted for filing and deemed filed as of May 23, 2025.

Chavarria's motion for summary judgment based on the TAC is DENIED as moot.

CSAA's demurrer to the 4AC's first, second, and third causes of action on the ground that they each fail to state sufficient facts against CSAA is SUSTAINED without further leave to amend.

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⁵ The court's May 15, 2025 order denied Plaintiffs' request to add a cause of action for negligent misrepresentation against CSAA.

Calendar Line 4

Case Name: *Wells Fargo Bank, N.A. vs Alexandra J. Lewis*

Case No.: 24CV445892

I. BACKGROUND

This is a limited civil action brought by plaintiff Wells Fargo Bank, N.A. (“Wells Fargo”) against defendant Alexandra Lewis. Wells Fargo seeks to recover unpaid credit card debt from Lewis.

The original and still-operative complaint is a form complaint filed by Wells Fargo on August 23, 2024. It states two causes of action: (1) Breach of Written Contract; and (2) Breach of Implied-In-Fact Contract. Attached to the complaint as Exhibit A is a copy of the Visa credit card agreement upon which the first cause of action is based. (See Complaint, ¶ BC-1.) While the credit card agreement is not signed by either party, paragraph 1 of Part 1 states, in part: “This contract is for your Credit Card account (Account) and is between Wells Fargo Bank, N.A. and each account holder By using or confirming your Account, you and any joint Account holder accept this agreement’s terms.” Paragraph 2 of Part 1 states, in part: “When you use your Account or let someone else use it, you promise to pay the total amount of the Purchases, Cash Advances, and Balance Transfers. You also promise to pay all interest, fees, and other amounts that you may owe us.”

Lewis answered the complaint on December 5, 2024. Wells Fargo has now filed a motion for summary judgment, which Lewis opposes.

II. MOTION FOR SUMMARY JUDGMENT

A. General Standards

The pleadings limit the issues presented for summary judgment or summary adjudication and such a motion may not be granted or denied based on issues not raised by the pleadings. (See *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 (*Laabs*); *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 (*Nieto*) [“[T]he pleadings determine the scope of relevant issues on a summary judgment motion.”].)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (See Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975 [“If a cause of action is not shown to be barred in its entirety, no order for summary judgment—or adjudication—can be entered.”]; *Palm Springs Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

The moving party’s declarations and evidence will be strictly construed in determining whether they negate or disprove an essential element of a plaintiff’s claim—the court will “resolve any evidentiary doubts or ambiguities in plaintiff’s [or opposing party’s] favor.” (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.) While the same standards of admissibility govern both, the opposition declarations are liberally construed while the moving party’s evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th